

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                |                                                                      |                           |                                                                                                                                                                                                            |
|--------------------------------------------------------------------------------|----------------------------------------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Megan McCurdy                                                 | Team:<br>Squad #13                                                   | CCRB Case #:<br>202311408 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 11/19/2023 10:14 PM, Monday,<br>11/20/2023 5:00 AM | Location of Incident:<br>§ 87(2)(b) and § 87(2)(b) and<br>§ 87(2)(b) | 18 Mo. SOL<br>5/19/2025   | Precinct:<br>73                                                                                                                                                                                            |
| Date/Time CV Reported<br>Mon, 11/20/2023 7:00 AM                               | CV Reported At:<br>IAB                                               | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 12/05/2023 2:44 PM                                                                                                                                                      |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. PO Jesse Slavin         | 18421  | 968139 | 073 PCT |
| 2. PO Pedro Martinezgarcia | 30200  | 973578 | 073 PCT |
| 3. PO Manpreet Singh       | 23163  | 972262 | 073 PCT |
| 4. SGT Mohammed Rahman     | 03885  | 964717 | 073 PCT |
| 5. PO Joseph Rivera        | 26171  | 947835 | 073 PCT |
| 6. SGT Soney Varghese      | 03931  | 957246 | 073 PCT |

| Officer(s)                  | Allegation                                                                        | Investigator Recommendation |
|-----------------------------|-----------------------------------------------------------------------------------|-----------------------------|
| A . SGT Soney Varghese      | Force: Sergeant Soney Varghese used physical force against § 87(2)(b)             |                             |
| B . PO Manpreet Singh       | Force: Police Officer Manpreet Singh used physical force against § 87(2)(b)       |                             |
| C . PO Jesse Slavin         | Force: Police Officer Jesse Slavin used physical force against § 87(2)(b)         |                             |
| D . PO Pedro Martinezgarcia | Force: Police Officer Pedro Martinezgarcia used physical force against § 87(2)(b) |                             |
| E . PO Joseph Rivera        | Force: Police Officer Joseph Rivera used physical force against § 87(2)(b)        |                             |
| F . SGT Mohammed Rahman     | Force: Sergeant Mohammed Rahman used physical force against § 87(2)(b)            |                             |
| G . PO Joseph Rivera        | Force: Police Officer Joseph Rivera restricted § 87(2)(b)'s breathing.            |                             |
| H . PO Joseph Rivera        | Force: Police Officer Joseph Rivera used a chokehold against § 87(2)(b)           |                             |

## Truncation Case Summary

### Search IAs: 10

Created by: Melina Diaz on 12/05/2023

Remarks Performed a BADS search. Arrest § 87(2)(b) was found. CV's pedigree information was obtained from report. See IA 3

Created by: Megan McCurdy on 12/07/2023

Remarks Performed the following CTS+ searches, which yielded negative duplicate/open complaints: CV Name § 87(2)(b) -yielded a prior closed complaint (#§ 87(2)(b)), which § 87(2)(b)'s first name is spelled, § 87(2)(b)." -In IA 9, § 87(2)(b) confirmed his contact information -Phone Number: § 87(2)(b) - Same mailing address, no email address -yielded an IAB referral (§ 87(2)(b)) -Contact information for § 87(2)(b) appears to be listed the same as his mother's, which is as follows: -same phone number as current complaint -Mailing Address: § 87(2)(b) in Brooklyn -Email Address: § 87(2)(b) CV Phone Number § 87(2)(b) First Incident Date (11/19/23) and Precinct of Occurrence (73) Second Incident Date (11/20/23) and Precinct of Occurrence (81)

Created by: Megan McCurdy on 12/07/2023

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Created by: Megan McCurdy on 12/07/2023

Remarks Performed a DOC for NYC search for § 87(2)(b) by NYSID, which yielded negative results.

Created by: Megan McCurdy on 12/08/2023

Remarks Performed a TARU search for cameras capturing the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, which yielded negative results.

Created by: Megan McCurdy on 12/08/2023

Remarks Performed a NYCMap search for § 87(2)(b) and § 87(2)(b) in Brooklyn, which yielded that the intersection is within the confines of the 73rd Precinct, but is within a block of the 67th Precinct border.

Created by: Megan McCurdy on 12/08/2023

Remarks Performed a DMV search for § 87(2)(b)'s driver's license number (§ 87(2)(b)), which yielded one result.

Created by: Megan McCurdy on 12/08/2023

Remarks Performed a DMV search for the VIN of the vehicle § 87(2)(b) was driving (as per the arrest report in IA 3), which yielded one result.

Created by: Megan McCurdy on 12/08/2023

Remarks Performed a BADS search for arrests of § 87(2)(b) (DOB: § 87(2)(b)) within the last five years, which yielded 14 results.

Created by: Jean Paul Lozada on 12/11/2023

Remarks Performed a Clear search.

### Contact complainant/victim IAs: 22

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 12/08/2023

Remarks Call 1: Called § 87(2)(b) at § 87(2)(b) (from arrest report in IA 3), and his mother, § 87(2)(b) answered the phone. She stated that she was present for the beginning and end of the incident, but not at the hospital. § 87(2)(b) requested the undersigned investigator prove their identity by sending an email with official letterhead, which the undersigned investigator agreed to do. She provided her email address as § 87(2)(b). § 87(2)(b) became upset when the undersigned investigator asked if § 87(2)(b) had a criminal case regarding this incident. The undersigned investigator explained that they were asking to see if § 87(2)(b) had an open criminal case because, if he did, any statements made to the CCRB could be subpoenaed by the prosecution and used against him. Explained that § 87(2)(b) had the option to speak with his attorney before providing a statement and explained the option of closing pending litigation. § 87(2)(b) was upset that the undersigned investigator had not explained earlier in the conversation that statements made to the CCRB could be subpoenaed, although the undersigned investigator explained this early in the conversation. § 87(2)(b) said

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§ 87(2)(b) would consult with his attorney, but refused to provide the attorney's contact information. The undersigned investigator provided § 87(2)(b) with their own contact information and agreed to wait to hear from either § 87(2)(b), § 87(2)(b), or the attorney about the attorney's advice. § 87(2)(b) also mentioned having videos/photographs of the incident.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/04/2024

Remarks Call 1: Called § 87(2)(b) at § 87(2)(b) (from CCRB case § 87(2)(b)) and an automated voice said service was unable to be used or unavailable and then made a continuous beeping noise.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/04/2024

Remarks Call 1: Called § 87(2)(b) at § 87(2)(b) (from arrest report #§ 87(2)(b)) and an automated voice said this phone could not accept calls at this time.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/04/2024

Remarks Call 1: Called § 87(2)(b) at § 87(2)(b) (from arrest #§ 87(2)(b)) and it was not in service.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/04/2024

Remarks Call 2a: Called § 87(2)(b) at § 87(2)(b) and she answered. However, she stated she was at an appointment and requested the undersigned investigator call back and leave a voicemail. She stated she would call back when she returned home.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/04/2024

Remarks Call 2b: Called § 87(2)(b) at § 87(2)(b), per her request in IA 31, and left a please call voicemail requesting information about whether she had spoken with § 87(2)(b) and/or his attorney regarding if § 87(2)(b) would like to provide a statement to the investigation at this time.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 3: Called § 87(2)(b) at § 87(2)(b), and no one answered. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 1: Called § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 1: Called § 87(2)(b) at § 87(2)(b) (from § 87(2)(b) in IA 36), and he did not answer. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 2: Called § 87(2)(b) at § 87(2)(b) (from CCRB case § 87(2)(b)) and an automated voice said service was unable to be used or unavailable.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 2: Called § 87(2)(b) at § 87(2)(b) (from arrest report #§ 87(2)(b)) and an automated voice said this phone could not accept calls at this time.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/11/2024

Remarks Call 2: Called § 87(2)(b) at § 87(2)(b) (from arrest #§ 87(2)(b)) and no one answered. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)  
Created by: Megan McCurdy on 01/16/2024

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Remarks Call 3: Called § 87(2)(b) at § 87(2)(b) (from CCRB case § 87(2)(b)) and an automated voice said service was restricted or unavailable.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/16/2024

Remarks Call 3: Called § 87(2)(b) at § 87(2)(b) (from arrest report # § 87(2)(b)) and an automated voice said this phone could not accept calls at this time.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/16/2024

Remarks Call 3: Called § 87(2)(b) at § 87(2)(b) (from arrest # § 87(2)(b)) and no one answered. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/16/2024

Remarks Call 4: Called § 87(2)(b) at § 87(2)(b), and no one answered. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Call 4: Called § 87(2)(b) at § 87(2)(b) (from CCRB case § 87(2)(b)) and an automated voice said service was restricted or unavailable.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Call 4: Called § 87(2)(b) at § 87(2)(b) (from arrest report # § 87(2)(b)) and an automated voice said this phone could not accept calls at this time.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Call 4: Called § 87(2)(b) at § 87(2)(b) (from arrest # § 87(2)(b)) and no one answered. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Call 2: Called § 87(2)(b) at § 87(2)(b) (from § 87(2)(b) in IA 36), and he did not answer. Left a please call voicemail message.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Call 5: Called § 87(2)(b) at § 87(2)(b), and she answered. She stated that she informed her son of the CCRB's attempts to contact him, and he reached out to his attorney via email twice to inform the attorney that he would like the attorney to be present during his CCRB interview and requesting the attorney reach out to the CCRB. Informed § 87(2)(b) that the undersigned investigator has not received any communication from § 87(2)(b)'s attorney. § 87(2)(b) refused to provide the undersigned investigator with contact information for § 87(2)(b) or his attorney but agreed to ask § 87(2)(b) to reach out to his attorney again about scheduling his CCRB interview. Agreed to wait to hear from § 87(2)(b)'s attorney.

Contact: Comp/Victim § 87(2)(b)

Created by: Megan McCurdy on 01/18/2024

Remarks Received a call from § 87(2)(b) from § 87(2)(b) and he stated that he hoped § 87(2)(b)'s criminal case would be dismissed in approximately a month, but opted to close this complaint pending litigation. Informed he that he or § 87(2)(b) can reach out to the undersigned investigator once § 87(2)(b)'s criminal case has concluded to reopen the case.

## Letters/Correspondence IAs: 4

Document List:

Free content letter to c/v/w to Comp/Victim § 87(2)(b) Created 12-08-2023 by Megan McCurdy

1st please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 01-04-2024 by Megan McCurdy

Final please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 01-11-2024 by Megan McCurdy

Final please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 01-18-2024 by Megan McCurdy

Letters/Correspondence IA created by: Megan McCurdy on 12/08/2023

Remarks Emailed § 87(2)(b) at § 87(2)(b) confirming the undersigned investigator's identity as an investigator at the CCRB.

Letters/Correspondence IA created by: Megan McCurdy on 01/04/2024

Remarks Letter 1: Mailed a please call letter to § 87(2)(b) at § 87(2)(b) in Brooklyn (arrest report in IA 3).

Letters/Correspondence IA created by: Megan McCurdy on 01/11/2024

Remarks Letter 2: Mailed a please call letter to § 87(2)(b) at § 87(2)(b) in Brooklyn (arrest report in IA 3).

Letters/Correspondence IA created by: Megan McCurdy on 01/18/2024

Remarks Letter 3: Mailed a please call letter to § 87(2)(b) at § 87(2)(b) in Brooklyn (arrest report in IA 3).

**Civilian Interview Scheduled IAs: 0**

**Civilian Interview Missed IAs: 0**

**Truncation Report Remarks:**

On January 18, 2024, § 87(2)(b) s attorney, § 87(2)(b), stated that he wanted § 87(2)(b) to wait to provide a statement until the conclusion of his open criminal case, and he was informed that he or § 87(2)(b) may contact the CCRB when they are ready to move forward, § 87(2)(g)

Squad No.: 13

|               |               |                     |            |
|---------------|---------------|---------------------|------------|
| Investigator: | Megan McCurdy | Inv. Megan McCurdy  | 01/18/2024 |
|               | Signature     | Print Title & Name  | Date       |
| Squad Leader: | JP Lozada     | IM Jean-Paul Lozada | 01/18/2024 |
|               | Signature     | Print Title & Name  | Date       |